

HOUSE BILL 2324

By Miller

AN ACT to amend Tennessee Code Annotated, Title 10, Chapter 7; Title 67, Chapter 1, Part 17; Title 67, Chapter 1, Part 18; Title 67, Chapter 1, Part 8 and Title 67, Chapter 4, Part 21, relative to audits of refunds claimed for franchise taxes.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 67-4-2122, is amended by adding the following as new subsections:

(e) Notwithstanding § 67-1-1702, subdivision (a)(4) or (8), or another law to the contrary:

(1) A refund paid pursuant to this section is open to public inspection as a public record under the public records laws compiled in title 10, chapter 7.

Upon written request to the department, a copy of a record, document, or other information, including the name of the taxpayer and total amount refunded, pertaining to a refund paid pursuant to this section must be forwarded to the requesting party.

(2)

(A) The comptroller of the treasury shall conduct or contract for at least one (1) annual financial audit of all franchise tax refunds claimed and all such tax refunds issued to taxpayers for the prior fiscal year under the authority granted in § 8-4-109. The audit must include any other information the comptroller deems relevant in making such determinations.

(B) All audits conducted under subdivision (e)(2)(A) must be made available on the comptroller's website no later than December 31 of the subsequent fiscal year.

SECTION 2. Tennessee Code Annotated, Section 67-1-1709(d), is amended by deleting "§ 67-4-2122(a)(8)" and substituting instead the language "§ 67-4-2122(a)(8) or (e)".

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.